MTHULISI SIBANDA
(In his capacity as the Executor of the Estate of the late Rebecca Siziba)
and
THE PROVINCIAL MINING DIRECTOR, MIDLANDS PROVINCE, N.O.
and
THE SECRETARY FOR MINES AND MINING DEVELOPMENT
and
C MINE MINING SYNDICATE
and
OFFICER IN CHARGE, ZIMBABWE REPUBLIC POLICE, MINERALS, FLORA AND FAUNA UNIT, MIDLANDS PROVINCE
and
MASTER OF THE HIGH COURT, N.O.

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 18 and 22 June 2026

Opposed Application

G Madzoka, for the applicant
N shereni, for 1st ,2nd & 4th respondents
C Makwara, for the 3rd respondent

MAMBARA J:

Background

[1] This is an application brought in terms of s 4 of the Administrative Justice Act [*Chapter 10:28]* for the setting aside of administrative action taken by the first respondent in relation to a mining dispute between the applicant's B2 Mine and the third respondent's mine, described on the record variously as 1B1 Mine and C Mine, under registration number 35292. The dispute concerns the true position of the two claims, whether the third respondent's title was issued on ground open to prospecting and pegging, and whether the third respondent's registration should be disturbed. The Constitution of Zimbabwe remains the supreme legal framework within which questions of lawful and fair administrative conduct must be resolved.

[2] In the founding papers the applicant sought, in substance, an order:

(a) setting aside the first respondent's determination of 13 February 2025 holding that the third respondent's 1B1 mining location did not over-peg the applicant's B2 mining location;

(b) setting aside the first respondent's decision to register the third respondent's mining location on the basis that the land was allegedly not open to prospecting and pegging;

(c) interdicting the third respondent from interfering with the applicant's occupation and mining activities on B2; and

(d) ordering the respondents to pay costs on the legal practitioner and client scale.

[3] The brief factual background is this. The record shows that B2 Mine was applied for on 19 September 1990 by Rebecca Siziba and was registered on 28 December 1990. The same record further shows that there is no transfer of that mine to any other person and that it remained in the name of Rebecca Siziba. The third respondent's mining title, registration number 35292, was issued on 20 January 2025.

[4] When the matter came before CHITAPI J on 20 November 2025, the parties consented to an order setting aside the first respondent's determination of 13 February 2025 for contravention of s 3 of the Administrative Justice Act, and the matter was referred back to the first respondent to investigate and report on three questions, namely: whether the third respondent's 1B1 mining location had been pegged on ground covered by the applicant's B2 mining location; the coordinates of the two claims; and whether the third respondent's claim had been pegged on ground open to prospecting and pegging. The first respondent was directed to accord the parties a hearing and to file a technical report.

[5] Pursuant to that order, a ground verification exercise was conducted. A first report was produced in April 2026. When the matter was later placed before me, complaint was made that the diagram attached to the report did not reflect all the relevant coordinates. By consent, on 15 May 2026, I remitted the matter back to the Provincial Mining Director for amendment of the diagram so as to include coordinates for the position at registration and the present ground position. A corrected and final report dated 18 May 2026, with coordinate tables and survey diagrams, was thereafter filed.

[6] At the final hearing the applicant was represented by Mr G. Madzoka. The first, second and fourth respondents were represented by Ms N. Shereni. The third respondent was represented by Mr C. Makwara. In order to clarify the technical issues arising from the report

I invoked r 58(12) of the High Court Rules, 2021, called the Provincial Mining Director to give oral evidence, and granted leave for cross-examination. The hearing then proceeded on the basis of both the written material and that oral clarification.

The law

[7] The earlier point concerning the absence of an executor was, in law, a sound one. A deceased estate litigates through its duly appointed executor. That much appears from authorities such as *Estate Hughes* v *Fouche 1930* TPD 41, *Haarhoff's Executor* v *De Wet's Executor* 1939 CPD 271, *Gross* v *Pentz* 1996 (4) SA 617 (A), *Clarke* v *Barnacle* NO & Ors 1958 R & N 358 (SR), and *Nyandoro & Anor* v *Nyandoro & Ors* 2008 (2) ZLR 219 (H). That is precisely why the 13 February 2025 determination was set aside by consent before CHITAPI J. But that procedural defect does not, without more, dispose of the remitted merits. The matter was reopened, the applicant participated in his proper representative capacity, and the court must now determine the substantive issues on the evidence as it stands.

[8] The applicable administrative law standard is also plain enough. As the applicant correctly submitted in his heads, the Constitution and s 3 of the Administrative Justice Act require administrative conduct to be lawful, reasonable and fair, and, for fairness, to include adequate notice and a reasonable opportunity to make representations. Those propositions informed the earlier consent order. They do not, however, predetermine the remitted factual outcome.

[9] As to the substantive mining dispute, the applicant bore the onus of proving that the third respondent's title was granted on ground not open to prospecting and pegging, or on ground already covered by B2. The proposition that a party seeking such relief carries the evidential burden was rightly linked by counsel to *Nyahondo* v *Hokonya & Ors* 1997 (2) ZLR 457 (SC). It follows that the applicant had to prove, on reliable material, the true registration position of B2 and the fact of over-pegging.

[10] In addition, the applicant's final interdictory relief can only succeed on the well-known requirements stated in *Setlogelo* v *Setlogelo* 1914 AD 221 at 227, namely a clear right, an injury actually committed or reasonably apprehended, and the absence of an adequate alternative remedy. If the applicant fails to establish title to the disputed area, the interdict must fail.

Analysis

[11] I turn first to the point about the exclusive prospecting order. The record contains General Notice 347 of 2021, which issued Exclusive Prospecting Order No. 1807 to Auriga Mineral Exploration (Private) Limited for the period 12 March 2021 to 11 March 2024, inclusive. What was later placed before the court was not proof of renewal, but merely a letter dated 18 December 2023 applying for an extension or renewal. The third respondent's certificate of registration was issued on 20 January 2025. An application for renewal is not proof that renewal was granted. In oral argument the applicant did not meaningfully pursue the EPO point. In my view that point fell away, and in any event the documentary record does not establish that an extant EPO rendered the ground closed on 20 January 2025.

[12] The real contest is therefore about encroachment and mispositioning. The applicant relied heavily on the affidavit of Terrence Kapaso, who stated that on 27 April 2025 he attended at B2, took coordinates from beacons pointed out by the applicant, and concluded that the third respondent's claim over-pegged B2. Kapaso's B2 coordinates were given as:

A 798221 / 7734195

B 797755 / 7734188

C 797733 / 7734394

D 798259 / 7734391.

He compared those with the third respondent's preregistration survey coordinates and opined that there was overlap.

[13] That evidence was not without relevance, but it had an obvious limitation. Kapaso's exercise assumed that what the applicant pointed out to him on 27 April 2025 was indeed the original and lawful registration position of B2. His affidavit does not independently establish that premise. His comparison was therefore only as reliable as the position shown to him by the applicant.

[14] The court-ordered PMD exercise did something different and, in my view, more probative. It did not simply accept the present occupation claimed by one side. It compared the official registration or docket position with the ground position found upon verification.

That, in a matter such as this, is the correct enquiry. The question is not merely where a miner presently says he is operating. The question is whether his present occupation corresponds with the legally registered position of the claim.

[15] The applicant submitted that the PMD report was defective because it referred to the "docket" rather than to beacons, and because the docket itself was not separately produced. I am unable to agree. The purpose of my order of 15 May 2026 was to ensure that the report reflected coordinates for both the registration position and the current ground position. The final report did exactly that. Where a dispute concerns whether a present ground position corresponds with an original registration position, the official office record is not collateral; it is central. The use of the term "docket" in the report was plainly a reference to the official mining office record from which the registration coordinates were drawn.

[16] The decisive passages of the corrected final PMD report are these:

> "1. B2 Mine Registration Number 5757 and C Mine block of claims Registration Number 35292 registration positions do not over peg each other but share a boundary. Thus, third Respondent's mining location was not pegged on ground covered by Applicant's B2 claims.
>
> 2. B2 Mine Registration Number 5757 ground coordinates and registration coordinates as submitted for regularisation upon payment of inspection fees do not tally.
>
> 3. B2 Mine Registration Number 5757 ground position encroaches onto C Mine block of claims Registration Number 35292.
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> 4. The disputed ground where excavations are being done is within C Mine block of claims Registration Number 35292 block of claims.
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> 5. C Mine block of claims Registration Number 35292 ground and registration positions are more or less the same with one coordinate slightly off by 20 metres.
>
> 6. With regard to the dispute at hand, third Respondent's mining title was not pegged on Applicant's mining location but on ground open to prospecting.
>
> 7. The cause of the dispute is mispositioning by Applicant who, instead of occupying its registration position, encroached onto third Respondent's C Mine block of claims Registration Number 35292."

[17] Those findings were not left at the level of conclusion. The final report appended a coordinate table and a survey diagram. The table shows that C Mine's docket coordinates and ground coordinates were substantially the same, namely:

A moved from 798222 / 7734162 to 798221 / 7734166;

B from 797716 / 7734182 to 797724 / 7734181;

C from 797720 / 7734370 to 797718 / 7734374;

D from 798222 / 7734357 to 798236 / 7734373.

That is broad consistency. By contrast, B2's docket and ground positions did not tally. The diagram graphically depicts B2's current ground position as shifted away from its registration position and encroaching into the third respondent's claim.

[18] In my view that comparison significantly undermines the applicant's case. It supports the respondents' core contention that there was no over-pegging at the point of registration of the third respondent's claim, and that the later conflict arose because B2's present occupation no longer corresponded with its registered position.

[19] I also heard oral clarification from the Provincial Mining Director. He explained that a survey team went on the ground; that coordinates were collected there; that the applicant's mine did not present standard beacons on the ground and that the positions found differed from the official record; and that the final report was compiled from the survey material and the office records. He was cross-examined on the basis that he had not personally been part of the ground team. That challenge affected weight, not admissibility. This was an official report produced within his office's statutory remit, based on a technical verification exercise ordered by the court. The surveyor, Mr Dube, was present to assist if need be. I was satisfied that the PMD sufficiently explained the source and content of the report.

[20] I was referred in replication to *Hiltumen* v *Hiltumen* 2008 (2) ZLR 296 for the proposition that the court is not bound by the PMD's testimony or report. That proposition is correct as far as it goes. A court must evaluate such material and is not compelled to accept it uncritically. But the converse is equally true: the court is entitled to accept it where, as here, it is supported by a court-ordered survey, by coordinate tables, by diagrams, by the official registration record, and by the internal coherence of the findings. On the evidence before me, the PMD material is materially more persuasive than the applicant's private comparison exercise.

[21] Counsel also referred me to s 353 of the Mines and Minerals Act and to s 177(8), or s 178(8), in argument on beacons and the time at which positions are to be judged. I need not resolve the numerical discrepancy in counsel's references. Even on the applicant's own premise, the decisive question is the true registration position as against the present ground

occupation. The corrected final report addressed precisely that question. If original beacons on the ground are absent, compromised or inconsistent with the official record, the court cannot ignore the official registration coordinates and prefer only what is presently pointed out on the ground.

[22] I therefore make the following principal findings.

First, the applicant has not proved that on 20 January 2025 the disputed ground was closed by an extant exclusive prospecting order.

Second, the applicant has not proved that the third respondent's registered position over-pegged B2's registered position.

Third, the probabilities and technical evidence establish the contrary position, namely that the applicant's present ground occupation is inconsistent with the B2 registration position and has encroached upon the third respondent's mine.

[23] Once those findings are made, the relief seeking cancellation of the third respondent's certificate of registration cannot stand. There is no legal basis for setting aside the 20 January 2025 registration of the third respondent's mine.

[24] The interdict sought against the third respondent must fail for the same reason. The applicant has not established a clear right to the disputed area. On the evidence before me, the workings in contention fall within the third respondent's claim and outside B2's lawful registration position. The requirements in *Setlogelo* v *Setlogelo* are accordingly not satisfied.

Order

[25] As to costs, there is no justification for punitive costs against any respondent. The earlier procedural defect in the 13 February 2025 determination was already cured by the consent order before CHITAPI J. On the remitted merits, the respondents have succeeded. The ordinary rule that costs follow the event should apply.

In the result, its is ordered as follows:

The application be and is hereby dismissed with costs on the ordinary scale

MAMBARA J…….

Hatinahama & Associates, applicant's legal practitioners
Civil Division, first second & fourth respondents' legal practitioners
Mandipa, Makwara & Chikukwa, third respondent's legal practitioners